

Ruby Nagar @ Alka vs Virender Baisoya on 10 January, 2020

Author: Hima Kohli

Bench: Hima Kohli, Asha Menon

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ MAT.APP.(F.C.) 8/2020

RUBY NAGAR @ ALKA

..... Appellant

Through: Mr. Priyanshu Upadhyay, Advocate.

versus

VIRENDER BAISOYA

..... Respondent

Through: None.

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MS. JUSTICE ASHA MENON

ORDER

% 10.01.2020 MAT.APP.(F.C.) 8/2020, C.M. No. 581/2020 (by the appellant for condonation of delay in filing the appeal), C.M. No. 582/2020 (by the appellant for condonation of delay in re-filing the appeal)

1. The appellant/wife is aggrieved by the judgment dated 23.8.2019 passed by the learned Family Court allowing a petition filed by the respondent/husband for dissolution of marriage under Section 13 (1) (ia) of the Hindu Marriage Act, 1955.

2. We have heard arguments addressed by learned counsel at the stage of admission and on perusing the impugned judgment have expressed a prima facie view that the said judgment is a well reasoned one and does not warrant any interference.

3. We have also enquired from learned counsel for the appellant if his client would be willing to negotiate an amicable settlement with the respondent, particularly, in the light of the fact that there is an offspring from the marriage aged 3 years, who is in the care and custody of the appellant.

4. At the request of learned counsel for the appellant, the matter was passed over to enable him to obtain telephonic instructions from his client. On the second call, learned counsel for the appellant states that he has received instructions from the appellant to the effect that she does not wish to press the present appeal and instead, requests that a limited notice may be issued to the respondent on the aspect of arriving at a negotiated settlement with him.

5. Accordingly, the present appeal is disposed of as not pressed along with the pending applications and a limited notice is issued to the respondent directly as also to the counsel appearing for him before the learned Family Court on the aspect of negotiating a one time settlement with the appellant on filing of the process fee by speed post and courier, returnable on 21.4.2020. The notice

shall indicate that the parties shall remain present on the next date of hearing.

HIMA KOHLI, J ASHA MENON, J JANUARY 10, 2020 ap